

**SUBSTITUTE FOR
HOUSE BILL NO. 4141**

A bill to amend 1976 PA 451, entitled
"The revised school code,"
(MCL 380.1 to 380.1852) by adding section 1303a; and to repeal acts
and parts of acts.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 1303a. (1) Beginning in the 2026-2027 school year, the**
2 **board of a school district or the board of directors of a public**
3 **school academy shall implement a wireless communications device**
4 **policy that prohibits students from using a wireless communications**
5 **device on school grounds during instructional time.**

6 **(2) The board of a school district or the board of directors**
7 **of a public school academy may implement additional restrictions**
8 **regarding the use of wireless communications devices.**



1 (3) A wireless communications device policy implemented under
2 this section must provide details regarding enforcement mechanisms
3 that the school will use to achieve the goals of the policy.

4 (4) A wireless communications device policy implemented under
5 this section must provide exemptions for all of the following:

6 (a) Medically necessary devices.

7 (b) District-owned devices, including, but not limited to,
8 school-issued tablets and laptops.

9 (c) Devices designated by the district to be used for
10 instructional purposes.

11 (d) Devices used for special education programming or devices
12 provided as an accommodation to students as required under section
13 504 of title V of the rehabilitation act of 1973, 29 USC 794, or as
14 part of an individualized education plan under title II of the
15 Americans with disabilities act of 1990, 42 USC 12131 to 12165.

16 (e) Lesson-specific academic assignments, at the limited and
17 direct discretion of a classroom teacher.

18 (f) Emergency situations, as described in an emergency
19 operations plan developed under section 1308b. Use of a wireless
20 communications device under this subdivision must not interfere
21 with school emergency protocols or the actions of first responders,
22 and must not endanger students or faculty.

23 (5) The board of a school district or board of directors of a
24 public school academy shall post the wireless communications device
25 policy implemented under this section on the school district's or
26 public school academy's website.

27 (6) As used in this section:

28 (a) "Basic telephone" means a device primarily used for voice
29 calling that cannot support third-party applications, except those



1 preinstalled, and does not support access to internet platforms via
2 applications or web browsers.

3 (b) "School grounds" means a building, playing field, or
4 property used for school purposes to impart instruction to children
5 or used for functions and events sponsored by a school. School
6 grounds does not include a building used primarily for adult
7 education or college extension courses.

8 (c) "Wireless communications device" means an electronic
9 device capable of, but not limited to, text messaging, voice
10 communication, entertainment, navigation, accessing the internet,
11 sending and receiving photos and videos, or producing email.
12 **Wireless communications device does not include a basic telephone.**

13 Enacting section 1. Section 1303 of the revised school code,
14 1976 PA 451, MCL 380.1303, is repealed.

15 Enacting section 2. This amendatory act does not take effect
16 unless Senate Bill No. 495 of the 103rd Legislature is enacted into
17 law.